

[doc. web n. 10050145]
Decision of July 4, 2024
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No. 404 of July 4, 2024

GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN today's meeting, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing
of personal data, as well as the free movement of such data and repealing Directive 95/46/EC,
“General Data Protection Regulation” (hereinafter, “Regulation”);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the “Code regarding
the protection of personal data, containing provisions for the adaptation of national legislation to
Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the
protection of natural persons with regard to the processing of personal data, as well as the free
movement of such data and repealing Directive 95/46/EC” (hereinafter “Code”);

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures of external relevance,
aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection
of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8,
2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter “Guarantor Regulation No. 1/2019”);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for
the protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Ms. XX complained about the lack
of response from the Municipality of Villasimius, within the time limits set by the Regulation, to the
request to exercise the right to erasure from the institutional website of the Municipality of Villasimius
and de-indexing from search engines of an internal document related to a selection procedure initiated
by the same Municipality, specifically, the minutes No. 1 of December 19, 2019, containing her
personal data, such as the date of birth, degree grade, and evaluations obtained within that procedure,
as well as, moreover, the names of the members of the commission and the minute-taker (see
“Minutes No. 1 of the examination commission for the public selection for the appointment of Head of
the General and Social Affairs Sector – Deputy Municipal Secretary pursuant to Article 110, paragraph
1, of Legislative Decree No. 267 of August 18, 2000, initiated by the Municipality of Villasimius”).

2. The investigative activity.

Having ascertained, on August 24, 2022, that the aforementioned minutes, containing in particular the
personal data of the interested party, were published on the institutional website of the Municipality of
Villasimius, as well as indexed on search engines, on September 5, 2022, the Authority first invited the
Municipality to provide a timely and comprehensive response to the requests made by the complainant
within a period of 20 days.

Following this invitation, in a note dated September 23, 2023, the Municipality represented to the
Authority, in particular, that:

- “following appropriate checks [...], the report received has been confirmed” and, in particular, “the
existence of personal data in the document entitled ‘MINUTES NO. 1 OF THE EXAMINATION
COMMISSION FOR THE PUBLIC SELECTION FOR THE APPOINTMENT OF HEAD OF THE
GENERAL AND SOCIAL AFFAIRS SECTOR – DEPUTY MUNICIPAL SECRETARY PURSUANT TO

ARTICLE 110, PARAGRAPH 1, OF LEGISLATIVE DECREE NO. 267 OF AUGUST 18, 2000, INITIATED BY THE MUNICIPALITY OF VILLASIMIUS' has been verified, containing the personal data of the [complainant]";

- "therefore, in the 'Transparent Administration' section under the 'Competition Notices' subsection, the personal data (date of birth, degree grade, and evaluation obtained) in the reported documentation have been deleted";

- "an additional check was also carried out regarding the indexing on the web of the same information, which, once identified via web search engine, has also been removed from the search cache.";

- "also following a reorganization of the procedures of the Entity, the occasion was useful to verify the management systems of the rights of the interested parties and to prevent similar incidents from occurring again in the future."

Subsequently, in providing a response to an information request sent pursuant to Article 157 of the Code, in a note dated January 17, 2024, the Municipality declared, in particular, that:

- The publication of the aforementioned minutes arises from a "mistake of an absolutely negligent nature, in the form that is considered slight negligence, [...] determined not by a lack of knowledge of the regulations in the matter, nor by the intention to cause any harm in any form to the participant in the competitive procedure, but by the excessive workload during the pandemic period which, together with the simultaneous scarcity of human resources, led the Entity to commit an analytical error such as that which occurred regarding what was to be published";

- Furthermore, "there is an absence of communication of categories of special or judicial data; no prejudicial consequences have occurred, at least as far as [...] the knowledge [of this Municipality], to the detriment of the complainant";

- "Immediate cancellation of the document and the data reported by the complainant has been carried out, including the related de-indexing from search engines. Furthermore, the Entity has subsequently arranged for specific courses on the relationship between transparency and privacy, to better sensitize employees so that further episodes like this do not occur. Finally, [...] the Entity has modified its procedures prior to the publication of data and information, subjecting the documents to a more careful internal control";

- "The original request to exercise the rights of the interested party [was] sent not to the certified email address of the protocol or the DPO nor, in a perspective of fully facilitating the rights of the interested party, to the respective ordinary emails but to the ordinary email address of the municipal secretary during a period when the municipal secretariat was also vacant and the address was not consistently monitored, with the resulting notification problems (and proof of the related notification) determined by the means chosen by the complainant".

With a note dated April 10, 2023, the Authority, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality of Villasimius, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for the aforementioned Municipality having:

- Responded to the request to exercise the right of deletion and de-indexing made by the complainant, on September 23, 2022, only following the invitation to comply sent by this Authority on September 5, 2022, and therefore, in violation of Article 12 of the Regulation;

- Disseminated online the personal data of the complainant as well as, moreover, the names of the members of the examining commission and the minute-taker, contained within the aforementioned minutes no. 1 drafted by the same commission, appointed within the framework of the selection procedure called by the Municipality for the assignment of the position of Head of the General and Social Affairs Sector – Deputy Municipal Secretary pursuant to Article 110, paragraph 1, of Legislative Decree No. 267 of August 18, 2000, in the absence of a suitable regulatory basis, in violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letters c) and e), of the Regulation, as well as 2-ter of the Code (both in the text prior to the amendments made by Legislative Decree No. 8 of October 2021, in force at the time when the dissemination of the personal data in question began, and in the current text).

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated May 7, 2024, the Municipality of Villasimius, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

- "The episode is isolated and was determined [...] by a mere error in the application of the regulations on public competitions contained in the D.P.R. 487/1994 in force at the time, with particular reference to Article 12, paragraph 2 and Article 15, paragraphs 4 and 5";
- "The purpose pursued through the publication was to ensure the transparency of the competitive procedure and to allow the complainant, the only eligible candidate, to know the outcome of all evaluations made by the examining commission regarding her and the winner, and to be able to act, without delay, to protect her rights before the competent administrative and/or judicial authorities";
- "Nor was the error determined by the intention to cause any harm in any form to the participant in the competitive procedure, but by the excessive workload during the pandemic period which, together with the simultaneous insufficiency of human resources, led the Entity to commit an analytical error regarding the applicable regulations [...]";
- "The Entity [...] has provided for the immediate cancellation of the document and the data reported by the complainant, including the related de-indexing from search engines as soon as it was notified by this Authority on September 5, 2022";
- "Subsequent to this episode, the Entity arranged [...] for its employees to undergo specific courses on the relationship between transparency regulations and privacy, also to prevent similar episodes from occurring in the future. Furthermore, the Entity has modified its internal procedures regarding the publication of data and information, subjecting them to a more careful control".

****Internal documents subject to publication****;

- "there are no previous relevant violations committed by the data controller or previous measures pursuant to Article 58 of the Regulation";
- "the data controller is a small entity (of about 3,700 inhabitants), equipped with limited organizational and professional resources";
- "the conduct was carried out in the context of the epidemiological emergency from SARS-CoV-2, particularly hectic and critical also in terms of the organization and management of institutional activities."

3. Outcome of the investigative activity. The applicable legislation.

The regulation on the protection of personal data provides that public entities, even when operating in the context of competitive, selective, or evaluative procedures that precede the establishment of an employment relationship, may process the personal data of the data subjects (Article 4, No. 1, of the Regulation) if the processing is necessary "to comply with a legal obligation to which the data controller is subject" (consider specific obligations provided for by national legislation "for recruitment purposes," Articles 6, paragraph 1, letter c), 9, paragraphs 2, letter b) and 4; 88 of the Regulation) or "for the performance of a task carried out in the public interest or in connection with the exercise of public powers vested in the data controller" (Article 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code).

Such processing must, in any case, be based on the law of the European Union or the Member State, which must pursue a public interest objective and be proportionate to the pursuit of the same. The purpose of the processing must be necessary for the execution of a task carried out in the public interest or in connection with the exercise of public powers vested in the data controller (cf. Article 6, paragraph 3, of the Regulation and Article 2-ter of the Code).

National legislation has introduced more specific provisions to adapt the application of the rules of the Regulation, determining with greater precision specific requirements for processing, as well as other measures aimed at ensuring lawful and fair processing (Article 6, paragraph 2 of the Regulation) and, in this context, has provided that the legal basis provided for in Article 6, paragraph 3, letter b), of the Regulation, is constituted exclusively by the normative sources indicated in Article 2-ter of the Code. (2-ter of the Code).

The data controller is required to comply with the principles regarding data protection, including that of “lawfulness, fairness, and transparency” as well as “data minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c) of the Regulation).

3.1. The delayed response to the request to exercise the right referred to in Article 17 of the Regulation.

From the elements acquired in the context of the investigative activity, it has been established that the Municipality of Villasimius responded to the request to exercise the right to erasure and de-indexing made by the complainant, by removing the aforementioned notice from its institutional website and the related de-indexing from search engines, only on September 23, 2022, that is, following the invitation to comply sent by this Authority on September 5, 2022, thus failing to ensure compliance with the deadlines set by the Regulation for responding to the data subject.

In this regard, it is generally stated that the data controller is required to facilitate the exercise of rights by the data subject and, in any case, to provide explicit feedback to the request made by the data subject, regardless of its validity, without undue delay and, in any case, no later than one month from its receipt, within the context of a direct relationship between the data subject and the data controller. The aforementioned deadline may be extended by the controller by two months, if necessary, taking into account the complexity and number of requests, without prejudice to the right of the data subject to be informed of such extension and the reasons for the delay within one month from the receipt of the request (Article 12, paragraphs 2 and 3, of the Regulation).

Furthermore, if the data controller does not comply with the request of the data subject, it must inform them without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy (Article 12, paragraph 4, of the Regulation).

For the reasons stated above, it must be concluded that the late response provided by the Municipality of Villasimius to the request made by the data subject pursuant to Article 17 of the Regulation constituted a violation of Article 12 of the Regulation.

3.2. The unlawful dissemination of the personal data of the complainant as well as the names of the members of the commission and the recorder.

From the elements gathered and the facts emerged during the investigative activity, it has been established that the Municipality of Villasimius published on its official website the minutes no. 1 of December 19, 2019, related to a selection procedure announced by the Municipality itself and containing personal data of the complainant - such as the date of birth, the degree mark, and the evaluation within that procedure - as well as the names of the members of the commission and the recorder (see “Minutes no. 1 of the examining commission of the public selection for the appointment of the Head of the General and Social Affairs Sector – Deputy Municipal Secretary pursuant to Article 110, paragraph 1, of Legislative Decree No. 267 of August 18, 2000, announced by the Municipality of Villasimius”).

The document in question, according to what was established in the investigation and confirmed by the Municipality, was also indexed by general search engines.

In this regard, the legal provisions that establish, in general, the publicity of the rankings of competitions and selective tests (see, in particular, Presidential Decree No. 3 of January 10, 1957; as well as Articles 15 et seq. of Presidential Decree No. 487 of May 9, 1994 “Regulations containing rules on access to employment in public administrations and the methods of conducting competitions, unique competitions, and other forms of recruitment in public employment”, also following the amendments made by Presidential Decree No. 82 of June 16, 2023, and, more generally, on the publicity of recruitment procedures for personnel in public administrations, Article 35 of Legislative Decree No. 165 of March 30, 2001) serve the function of allowing interested parties, participants in competitive or selective procedures, to activate forms of protection of their rights and to control the legitimacy of administrative action. Based on the aforementioned regulatory framework, in fact, the publication of the ranking in the official bulletins of the respective entities (and on their institutional

websites) was notified by means of an announcement in the Official Gazette of the Republic, and from the date of the aforementioned publication, the deadline for any appeals commenced (see Article 15, paragraph 6 of Presidential Decree No. 487 of May 9, 1994, in the text prior to the amendments made by Presidential Decree No. 82/2023 applicable to the case at hand, which currently instead provides that publication takes place on the Single Recruitment Portal referred to in Article 35-ter of Legislative Decree No. 165 of March 30, 2001, and on the website of the interested administration, and that from the date of such publication the deadlines for appeals commence).

The provisions regarding administrative transparency also provide for specific publication obligations in the "Transparent Administration" section of the institutional website of the administrations. In fact, according to what is provided by Legislative Decree No. 33 of March 14, 2013, "without prejudice to other legal publicity obligations, public administrations publish the competition announcements for the recruitment, for any reason, of personnel at the administration, as well as the evaluation criteria of the Commission, the test tracks, and the final rankings, updated with any progression of suitable non-winners. Public administrations publish and keep constantly updated the data referred to in paragraph 1" (Article 19, paragraphs 1 and 2; see the Memorandum of the President of the Authority for the Protection of Personal Data on the draft budget law 2020 commission 5°, Budget, of the Senate of the Republic, of November 12, 2019, doc. web 9184376; see, lastly, provision of April 11, 2024, no. 235, doc. web no. 10019523 as well as provisions of March 23, 2023, no. 83, doc. web no. 9888096, and April 28, 2022, no. 151, doc. web no. 9778996, and the previous provisions referred to therein, including, in particular, provision of November 25, 2021, no. 407, doc. web no. 9732406).

These provisions define, from the perspective of data protection, the scope of permitted processing and constitute its legal basis by establishing limits, conditions, and prerequisites for the online publication of personal data within competitive procedures. However, they stipulate that only the definitive rankings of competition winners are to be published and not the intermediate or procedural acts related to the overall competitive procedure (see Article 15, paragraph 6, of the aforementioned Presidential Decree), as instead occurred in the case at hand with the publication of the aforementioned minutes no. 1 of December 19, 2019.

In this context, the Authority has, over time, provided specific general guidelines to public administrations regarding the precautions to be adopted for the dissemination of personal data on the Internet for the purposes of transparency and publicity of administrative action, in particular, in 2014, with the "Guidelines on the processing of personal data, including those contained in administrative acts and documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities" (provision no. 243 of May 15, 2014, doc. web no. 3134436, Part I and II, especially paragraph 3.b) and, with decisions on individual cases, has deemed the publication, within selective procedures and competitions, of acts and documents other than the final merit rankings to be unlawful (see provisions of May 17, 2023, no. 195, doc. web no. 9908484; November 25, 2021, no. 407, doc. web no. 9732406; March 11, 2021, no. 89, doc. web n. 9581028).

As represented above, the publication by the Municipality of Villasimius on its official website of minutes no. 1 dated December 19, 2019, related to a selection procedure initiated by the Municipality itself and containing personal data of the complainant - such as the date of birth, degree mark, and evaluation within that procedure - as well as the names of the members of the commission and the recorder, has resulted in the dissemination of personal data in the absence of an appropriate legal basis, in violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code.

4. Conclusions.

In light of the assessments mentioned above, it is noted that the statements made by the data controller during the investigation - the veracity of which may be subject to accountability under Article 168 of the Code - although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to permit the closure of the present procedure, as none of the cases provided for by Article 11 of the Guarantor's Regulation no. 1/2019 apply.

For the determination of the applicable norm, in temporal terms, the principle of legality referred to in

Article 1, paragraph 2, of Law no. 689/1981 must be recalled, according to which laws that provide for administrative sanctions apply only in the cases and times considered therein. This necessitates taking into account the provisions in force at the time of the violation committed, which - given the permanent nature of the contested offenses - must be identified at the moment of cessation of the conduct. It is believed that the Regulation and the Code constitute the legal framework within which to evaluate the treatments in question.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality of Villasimius is noted, for the aforementioned Municipality has:

- responded to the request for the exercise of the right to erasure and de-indexing made by the complainant on September 23, 2022, only following the invitation to comply sent by this Authority on September 5, 2022, and, therefore, in violation of Article 12 of the Regulation;
- disseminated online the personal data of the complainant as well as, moreover, the names of the members of the examining commission and the recorder, contained within the aforementioned minutes no. 1 drafted by the commission, appointed within the selection procedure initiated by the Municipality itself for the assignment of the position of Head of the General and Social Affairs Sector - Deputy Municipal Secretary pursuant to Article 110, paragraph 1, of Legislative Decree August 18, 2000, no. 267, in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letters c) and e), of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by Decree Law October 8, 2021, in force at the time when the dissemination of the personal data in question began, and in the current text).

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation no. 1/2019).

In this case, two distinct conducts are identified (one related to the delayed response to the request for the exercise of the right referred to in Article 17 of the Regulation and the other concerning the dissemination of the personal data of the complainant) attributable to the Municipality of Villasimius, which must, therefore, be considered separately for the purposes of quantifying the administrative sanctions to be applied.

In any case, considering that the conducts have exhausted their respective effects, the conditions for the adoption of corrective measures, referred to in Article 58, paragraph 2, of the Regulation, do not exist.

5.1. The conduct referred to in paragraph 3.1 of this provision.

Taking into account that the violation of the provisions cited in the previous paragraph 3.1 of this provision, due to the delayed response to the request for the exercise of the right referred to in Article 17 of the Regulation, occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative sanction pecuniary does not exceed the amount specified for the most serious violation. Considering that, in this case, the most serious violation concerns Article 12 of the Regulation, subject to the administrative sanction provided for in Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.

With specific regard to the subjective profile of the violation (Article 83, paragraph 2, letter b), of the Regulation), it is important to first consider the circumstance that the delay in responding to the request for the exercise of the rights of the data subject by the data controller was, at least in part, due to the fact that "the original request for the exercise of the rights of the data subject [was sent by the complainant] not to the certified email address of the protocol or the DPO [... or] to the respective ordinary emails but to the ordinary email address of the municipal secretary during a period when the municipal secretariat was also vacant and the address was not consistently monitored, with the resulting notification problems (and proof of the related notification) determined by the means chosen by the complainant" (cf. note of January 17, 2024).

In light of this specific circumstance, it is believed that, in this case, the level of severity of the violation committed by the data controller is low (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, the following mitigating circumstances should be considered favorably towards the data controller:

- there are no previous relevant violations committed by the data controller, having the same nature as those established in relation to the complaint facts, or previous measures pursuant to Article 58 of the Regulation (Article 83, paragraph 2, letter e), of the Regulation);
- the Municipality has offered good cooperation with the Authority during the investigation, having also provided an immediate response to the complainant following the invitation to comply made by the Guarantor (Article 83, paragraph 2, letter f), of the Regulation);
- the Municipality of Villasimius is a small territorial entity (about 3,700 inhabitants); moreover, the violation occurred in a context characterized by numerous difficulties on the organizational level as well as by further issues related to the emergency period due to the spread of the Covid-19 virus (Article 83, paragraph 2, letter k), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €1,000 (one thousand) for the violation of Article 12 of the Regulation, as an administrative pecuniary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Furthermore, taking into account the extended period during which the aforementioned data were published online on the official website of the Municipality, it is also deemed that the accessory sanction of publication on the Guarantor's website of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, should be applied.

Finally, it is noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

5.2. The conduct referred to in paragraph 3.2 of this provision.

Considering that the violation of the provisions cited in the previous paragraph 3.2 of this provision, due to the dissemination of the complainant's personal data, occurred as a result of a single conduct (same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Considering that, in this case, the most serious violation concerns Articles 5 and 6 of the Regulation, as well as Article 2-ter of the Code, subject to the administrative sanction provided for in Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.

With specific regard to the nature, severity, and duration of the violation (Article 83, paragraph 2, letter a), of the Regulation), it is necessary to consider, in particular, the limited number of data subjects

involved (in addition to the complainant, the three members of the commission and the minute-taker) and yet, on the other hand, the circumstance that the ranking has been...

****Subject of online publication for a particularly long period, until September 5, 2022 (see the statement made by the holder in the note of May 7, 2024), the day on which the aforementioned content was definitively removed.****

With regard to the subjective profile of the violation (Article 83, paragraph 2, letter b), of the Regulation), it must also be taken into account that the Municipality operated under the mistaken belief that it could pursue the aims of transparency in administrative action, without considering the regulatory framework of the sector and the indications provided over time by the Authority to all public entities in this matter (both with the "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities" mentioned above, and with numerous decisions on individual cases), and that the publication of the minutes in question resulted from an "error of an absolutely negligent nature, in the form that is considered to be slight negligence, [...] determined not by a lack of knowledge of the regulations in the matter, nor by a will to cause any harm in any form to the participant in the competitive procedure, but by the excessive workload during the pandemic period which, together with the simultaneous scarcity of human resources, led the Entity to commit an analytical error such as that which occurred regarding what was to be published" (see note of May 9, 2024).

It should also be considered that, in any case, the publication did not concern personal data belonging to the special categories referred to in Article 9 of the Regulation or data relating to criminal convictions or offenses (Article 83, paragraph 2, letter g), of the Regulation).

In light of these circumstances, it is believed that, in this specific case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, the following mitigating circumstances should be considered in favor of the data controller:

- there are no previous relevant violations committed by the data controller, having the same nature as those ascertained in relation to the facts of the complaint, or previous measures pursuant to Article 58 of the Regulation (Article 83, paragraph 2, letter e), of the Regulation);
- the Municipality has offered good cooperation with the Authority during the investigation, having also represented that it removed the aforementioned content, albeit following the invitation to comply issued by the Authority (Article 83, paragraph 2, letter f), of the Regulation);
- the Municipality of Villasimius is a small territorial entity (about 3,700 inhabitants); moreover, the violation occurred in a context characterized by numerous difficulties on the organizational level as well as by further problems related to the emergency period due to the spread of the Covid-19 virus (Article 83, paragraph 2, letter k), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €3,000 (three thousand) for the violation of Articles 5, paragraph 1, letter a), 6, and 12 of the Regulation, as well as Article 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account, in particular, the extended period during which the aforementioned data were subject to online publication on the institutional website of the Municipality, as well as the case subject to the complaint (failure by the Municipality to respond to the request made by the interested party aimed at obtaining the removal from the institutional website of the Entity and the de-indexing from search engines of an internal act of a selection procedure, containing a series of personal information concerning also third parties), it is also deemed appropriate to apply the accessory sanction of publication on the Authority's website of this provision, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY****

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Villasimius for violation of Articles 5, paragraph 1, letter a), 6, and 12 of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, in force at the time when the dissemination of the personal data in question began, and in the current text), in the terms set out in the reasoning;

****ORDERS****

the Municipality of Villasimius, represented by the legal representative pro tempore, with registered office at Piazza Gramsci 10 - 09049 Villasimius (SU), C.F. 80014170924, to pay the sum of €4,000 (four thousand) as an administrative monetary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Municipality, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €4,000 (four thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981;

PROVIDES

- for the publication of this provision on the website of the Authority pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Regulation of the Authority No. 1/2019);
- for the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Regulation of the Authority No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 4, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei